

Calendar Line 1

Case Name: In the Matter of DESIDERO ROMERO V, decedent

Case No.: 26PR203253

INTRODUCTION

Desiderio Romero V (“Decedent”) died intestate on July 7, 2007 at age 18. Decedent’s Mother, Stephanie Trombly (“Petitioner”), and Decedent’s Father, Desiderio Romero IV (“Father”), initially agreed to cremate Decedent and to divide his remains equally. One day before the scheduled cremation, Father requested that the cremation be rescheduled and expressed that he “had an issue with the cremation in general.” Petitioner subsequently filed an Ex Parte Petition for Court Order to Release Remains of a Decedent (“Petition”). Father objects to the Petition.

DISCUSSION

Health and Safety Code § 7100 establishes the priority order for the right and duty to control disposition of a decedent’s remains, including the disposition method, place and conditions of interment, and funeral goods and services. The statute gives priority, in relevant part, to: (1) an authorized agent under a power of attorney for health care; (2) the competent surviving spouse; (3) the sole surviving competent adult child, or a majority of competent adult children; (4) the surviving competent parent or parents; and (5) the competent adult sibling or siblings, subject to the statute’s majority rules; and then to more remote kin, conservators, or the public administrator. Because Decedent had no surviving spouse, adult children, or authorized health-care agent, the right of disposition devolves upon the “surviving competent parent or parents.” (Health & Saf. Code, § 7100(a)(4).)

Neither parent is incompetent under the statute. Petitioner argues that she was the sole provider and sole parent with legal and physical custody of Decedent during his childhood. Father counters that Decedent resided with him during the 4 months leading up to Decedent’s death. Neither argument establishes a higher statutory priority than the other. The statute does not establish a preference between two competent parents based on custodial history, financial support, residence at the time of death, or parent-child relationship. Nor does Petitioner’s active restraining order against Father automatically strip Father of authority under section 7100. Thus, Petitioner and Father equal standing.

When persons with equal statutory authority cannot agree, Health and Safety Code section 7105(c) applies. That section allows either such person to petition to determine who among those parties will have the control of disposition and for an order directing that person to make interment of the remains. The Court should primarily consider evidence of the decedent’s own wishes regarding cremation or burial, and California’s statutory scheme gives substantial effect to the decedent’s expressed wishes concerning disposition. (*Estate of Jimenez* (1997) 56 Cal.App.4th 733, 738.)

Here, neither party provides evidence of Decedent’s wishes concerning disposition. However, Petitioner and Father initially agreed to cremate Decedent and divide the cremated remains equally. (Petition ¶ 7, Exhibit A.) That agreement suggests that immediately after Decedent’s death, Father did not regard cremation as unacceptable or contrary to Decedent’s

wishes, and thus both parents initially believed cremation was not inconsistent with Decedent's wishes. This original agreement, coupled with Petitioner's history as Decedent's primary provider, bolsters her position. Moreover, Father's objection is based on his own religious beliefs. Father's personal views do control and would be relevant only to the extent they might reflect Decedent's beliefs or preferences. But there is no evidence of this. Similarly, Father's recent co-residence with Decedent might be relevant if it provided him access to reliable evidence of Decedent's recent preferences, but Father has not made any such representation. Absent such evidence and given Petitioner's longstanding role in Decedent's care and the parents' initial agreement to cremation, the Court concludes that Petitioner is better positioned to promptly arrange a disposition not inconsistent with Decedent's wishes. Indeed, Petitioner has demonstrated willingness to promptly arrange final disposition, and prompt disposition is also a legitimate and important interest.

CONCLUSION

The Petition is GRANTED. The Court orders as follows:

- 1) Stephanie Trombly shall have the sole right and responsibility to control the remains of Desiderio Romero V;
- 2) Petitioner is authorized to direct the Lima Family Memorial Chapel to proceed with cremation of Decedent's remains without further authorization or consent from Desiderio Romero IV;
- 3) Petitioner is authorized following cremation to cause the cremated remains to be divided between Petitioner and Desiderio Romero IV in accordance with their prior agreement to the extent practicable and lawful; and
- 4) Petitioner is authorized to direct Lima Family Memorial Chapel or other entity presently possessing Decedent's remains to comply with Petitioner's instructions concerning disposition.

The Court will prepare a final order

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